IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No1

CP(CAA)/15(AHM)2022
in
CA(CAA)/2(AHM)2021

Proceedings under Section 230-232 r.w 66 of Co.act,2013

IN THE MATTER OF:

Dayanidhi Real Estate Pvt Ltd **.....Applicant**
Ganesh Infoline Pvt Ltd
Ramdev Vyapaar Pvt Ltd **.....Respondent**
Anubha Fabrics Pvt Ltd

Order delivered on ..20/01/2023

Coram:

Dr.Deepti Mukesh, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant : Mr. Pavan Godiawala, Adv.
For the Respondent :

ORDER

Speaking to the Minutes is filed by Learned Counsel for the petitioner seeking correction in the typographical error in page no. 2 and 3 of the order dated 11.01.2023. Learned Counsel states that the name of the Transferor company no. 2 mentioned in memo of parties as well as in para 1 of the order is mentioned as Gujarat Infoline Pvt Ltd, whereas the correct name is Ganesh Infoline Pvt Ltd which is correctly reflecting on page no. 1 in the cause title of the order.

We have perused the order, speaking to the minutes is allowed. Accordingly the order stands corrected instead of Gujarat Infoline Pvt Ltd in page no. 2 and 3 should be read as Ganesh Infoline Pvt Ltd. This order shall be read along with the main order dated 11.01.2023 as corrected.

Speaking to minutes is disposed of.

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AJAI DAS MEHROTRA **DR. DEEPTI MUKESH**
MEMBER (TECHNICAL) **MEMBER (JUDICIAL)**

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NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
(COURT NO. II)

CP (CAA) 15/AHM/2022

IN

CA (CAA) 02/AHM/2021

(In the matter of Sections 230-232 and read with Section 66 of the Companies Act, 2013 read with The Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016)

In the matter of Scheme of Amalgamation
OF

DAYANIDHI REAL ESTATE PRIVATE LIMITED
(Petitioner Company No. 1/ Transferor Company No. 1)

AND

GANESH INFOLINE PRIVATE LIMITED
(Petitioner Company No. 2/ Transferor Company No. 2)

AND

RAMDEV VYAPAAR PRIVATE LIMITED
(Petitioner Company No. 3/ Transferor Company No. 3)

WITH

ANUBHA FABRICS PRIVATE LIMITED
(Petitioner Company No. 4/ Transferee Company)

Order Pronounced on: 11/01/2023

Coram:
DR. DEEPTI MUKESH,
HON'BLE MEMBER (JUDICIAL)
AJAI DAS MEHROTRA,
HON'BLE MEMBER (TECHNICAL)

MEMO OF PARTIES

In the matter of:

DAYANIDHI REAL ESTATE PRIVATE LIMITED
(CIN: U17100GJ2009PTC099421)
Registered Office at:
134, Supar Yarn Market, Zampa Bazar,
Surat-395003, Gujarat, India.

… Petitioner Company No. 1/
Transferor Company No. 1

GUJARAT INFOLINE PRIVATE LIMITED
(CIN: U17100GJ2008PTC099339)
Registered Office at:
134, Supar Yarn Market, Zampa Bazar,
Surat-395003, Gujarat, India.

… Petitioner Company No. 2/
Transferor Company No. 2

RAMDEV VYAPAAR PRIVATE LIMITED
(CIN: U17100GJ2004PTC100782)
Registered Office at:
134, Supar Yarn Market, Zampa Bazar,
Surat-395003, Gujarat, India.

… Petitioner Company No. 3/
Transferor Company No. 3

ANUBHA FABRICS PRIVATE LIMITED
(CIN: U20291GJ1994PTC024009)
Registered Office at:
Block No. 468, N.H.No.8,
Ta & Post: Palsana, Surat-394315,
Gujarat, India.

… Petitioner Company No. 4/
Transferee Company

For the Petitioners **:** Mr. Pavan S. Godiawala, Advocate.
For the Income Tax **:** Ms. Pankti Shah, Advocate.
For RD **:** Mr. B. Rama Ambedkar, Assistant Director.

ORDER

1. This joint petition has been filed by the petitioner companies above named under Sections 230 and 232 read with Section 66 of the Companies Act, 2013 (for brevity 'the Act') read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016(for brevity "CAA Rules")seeking sanction of the Scheme of Amalgamation (hereinafter called the "Scheme") of the M/s. Dayanidhi Real Estate Private Limited (for brevity referred as "Transferor Company No. 1") and M/s. Gujarat Infoline Private Limited(for brevity "Transferor Company No. 2") and M/s. Ramdev Vyapaar Private Limited (for brevity referred as "Transferor Company No. 3") (Transferor Company 1,2,3 collectively called as 'Transferor Companies') into M/s. Anubha Fabrics Private Limited (for brevity referred as "Transferee Company").

2. From the records, it is seen that joint first motion application seeking directions for dispensation of all the meetings of the equity

shareholders, secured and unsecured creditors of all the Petitioner Companies was allowed vide order dated 20.01.2021.

3. The 2nd motion joint petition was filed on 27.12.2021. The petition was for the first time listed on 21.02.2022 before this Bench and it was noticed by the Bench that 2nd motion petition was filed much belatedly without any application for condonation of delay.

4. IA 26 of 2022 was filed on 11.03.2022, for condonation of delay in filing of 2nd motion petition by the learned counsel of the petitioner companies, which was rejected and disposed of by the Bench vide order dated 23.03.2022 with following observation:

> *"...On perusal of the Application, it is seen that the reasons given for delay is due to pandemic like situation prevailing in the country and certain directors and employees and their respective family members of the Applicants companies were under quarantine due to infection of Covid-19. There are no reasons mentioned to justify such a long delay of more than one year and without any condonation of delay Application with second motion. There are no documents annexed with the Application to justify the sickness as mentioned in the Application. The Hon'ble Supreme Court in recent cases has held that the delay of each day should be explained while filing Application of condonation of delay. Considering the submissions made and documents placed on record, we do not consider that the reasons given in the Application are convincing and such a huge delay can be condoned. We do not see any reason to allow this Application.*
> *Application is rejected and disposed of."*

5. An appeal was filed against the said order dated 23.03.2022 before the Hon'ble NCLAT, which was allowed by the Hon'ble NCLAT vide order dated 15.07.2022, with following observations:

"5. After hearing the Ld. Counsel for the Appellant and going through the order passed by the Hon'ble Supreme Court in "Miscellaneous Application No. 21 of 2022 in Miscellaneous Application No. 665 of 2021 in Suo Motu Writ Petition (C) No. 3 of 2020 IN RE: Cognizance for extension of limitation dated 10.01.2022" wherein the Hon'ble Supreme Court have passed the following directions:

> *"5. Taking into consideration the arguments advanced by learned counsel and the impact of the surge of the virus on public health and adversities faced by litigants in the prevailing conditions, we deem it appropriate to dispose of the M.A. No. 21 of 2022 with the following directions:*
>
> *I. The Order dated 23.03.2020 is restored and in continuation of the subsequent orders dated 08.03.2021, 27.04.2021 and 23.09.2021, it is directed that the period from 15.03.2020 till 28.02.2022 shall stand excluded for the purposes of limitation as may be prescribed under any general or special laws in respect of all judicial or quasi-judicial proceedings.*
>
> *II. Consequently, the balance period of limitation remaining as on 03.10.2021, if any, shall become available with effect from 01.03.2022.*
>
> *III. In cases where the limitation would have expired during the period between 15.03.2020 till 28.02.2022, notwithstanding the actual balance period of limitation remaining, all persons shall have a limitation period of 90 days from 01.03.2022. In the event the actual*

balance period of limitation remaining, with effect from 01.03.2022 is greater than 90 days, that longer period shall apply.

IV. It is further clarified that the period from 15.03.2020 till 28.02.2022 shall also stand excluded in computing the periods prescribed under Sections 23 (4) and 29A of the Arbitration and Conciliation Act, 1996, Section 12A of the Commercial Courts Act, 2015 and provisos (b) and (c) of Section 138 of the Negotiable Instruments Act, 1881 and any other laws, which prescribe period(s) of limitation for instituting proceedings, outer limits (within which the court or tribunal can condone delay) and termination of proceedings.

6. We are of the considered view that the order passed by the National Company Law Tribunal (Ahmedabad Court-2) in IA 26 of 2022 in CP(CAA)/15(AHM)2022 in CA(CAA)/2(AHM)2021 cannot be sustained and is hereby set aside and hence the instant Appeal is hereby allowed subject to deposit of Rs. 11,000/- by the Appellant before the Ld. Registrar of this Appellate Tribunal within two weeks from today and the Ld. Registrar is directed that the aforementioned amount be used for the 'welfare of the employees' of this Appellate Tribunal.

With these directions, the Appeal is allowed and stand disposed of."

6. The 2nd motion petition was thereafter admitted vide order dated 28.07.2022 in view of the order passed by the Hon'ble NCLAT. Notices were issued to the concerned Statutory authorities and publication in English language and Gujarati language in "Financial Express" newspaper, both having circulation in Gujarat, was directed.

7. The Regional Director, North Western Region, MCA has filed common report on 23.02.2022 along with the report of RoC, Ahmedabad, seeking following directions:

   i) The petitioner companies to incorporate the justification/reason in the Scheme about gap of more than one year in filing date of application and appointed date and to place on record all the relevant facts of the matter.

   ii) The petitioner companies to undertake the compliance of section 232(3)(i) of the Companies Act, 2013 and to pay fees accordingly.

   iii) The petitioner companies to pay legal fees/cost to the central government.

   iv) The petitioner companies to pay necessary stamp duty on transfer of property/assets to the respective authorities before implementation of the scheme.

8. The Official Liquidator, attached with the Hon'ble High Court of Gujarat has filed separate observations for all the petitioner transferor companies and seeking directions as follows:

   i) The transferee company to increase its authorised share capital.

   ii) The transferor companies to preserve its books of accounts, papers and records and not to dispose them without prior permission of the Central Govt. as per the provisions of the section 239 of the Companies Act, 2013.

iii) The transferor companies to ensure statutory compliance of all applicable laws and also on sanctioning of the scheme the transferor company shall not be absolved from any of its statutory liability, in any manner.

iv) The transferee company to pay such cost and expenses to the office of the official liquidator for the transferor companies, or any such amount as may be considered appropriate by the Bench.

9. The Income Tax Department filed its report dated 03.10.2022, wherein following outstanding dues were shown as pending for petitioner companies:

(i) For the transferor company No. 2-

Assessment Year	Demand (Rs.)	Under Section	Remarks
2014-15	Rs. 476/-	143(1)a	Demand not paid
2011-12	Rs. 136/-		Demand not paid

(ii) For the transferor company No. 3-

Assessment Year		Under Section
2014-15	Rs. 770/-	143(1)a

(iii) For the transferee company-

Assessment Year	Demand (Rs.)	Under Section
2018-19	Rs. 4120/-	143(1)a

10. The Petitioner Companies have filed a common affidavit in reply on 22.09.2022, to the observations of Regional Director, RoC, Official

Liquidator and Income Tax Department. The submission made in above stated reply are as follows:

i) For differential fees, the transferee company gave undertaking for compliance of section 232(3)(i) of the Companies Act, 2013.

ii) It is submitted by the petitioner companies that due to wide spread COVID-19 pandemic in India and world, the companies were unable to complete the formalities and were not able to file application within 12 months from the appointed date. Further all the companies are closely held companies and there are no outside stakeholders. Further submitted that the appointed date as on 01/04/2019 will not be against the public interest. If the date is changed i.e., appointed date is changed it would require audited financial statements for the year 2020-21 and due to the lockdown for the substantial period from 20/3/2020 it was practically not possible to prepare the same in short period. The scheme was ultimately approved by the respective classes, pursuant to the first stage order passed by this Tribunal and changing the appointed date would be a cumbersome procedure besides the fact that entire procedure needs to be restarted and non-filing of the application within one year from the date fixed from the appointed date was neither intentional nor wilful but practically not possible. Due to pandemic if the entire mandatory procedure needs to be restarted, this would have involved huge expenses, energy, and resources and the companies would have lost the synergic benefit as

envisaged in the Scheme any delay in filing is not against the public interest and rights of any of the parties are even remotely affected. Petitioners had no occasion to foresee that the application shall be filed beyond 1 year. The application was heard at length and the Tribunal was pleased to allow the same and the meeting were duly convened as per the directions of the Tribunal and all equity shareholders and creditors approved the scheme without modification. With utmost respect the circular in question is dated 21/08/2019 which was before the global pandemic of covid-19 and admittedly later on in the subsequent financial years the Income Tax authorities have also extended the time limits for auditing and filing of the returns.

iii) The transferee company gave undertaking to pay legal fees, as per the order.

iv) The transferee company gave undertaking to increase its authorised share capital.

v) The transferee company gave undertaking to pay the necessary stamp duty on the scheme to the relevant stamp authority in accordance with the applicable Stamp Act/law.

vi) The transferee company gave undertaking to preserve the books of accounts, papers and records of the transferor companies and not to dispose of the same without prior permission of the Central Govt. as per the provisions of section 239 of the Companies Act, 2013.

vii) The transferee company gave undertaking to comply with statutory compliances under applicable laws and after the scheme coming into effect, all liabilities including statutory liabilities of the transferor companies and the same will be paid by the transferee company in ordinary course of business and as per applicable law.

viii) The transferee company, gave undertaking that any demand pending/raised by Income Tax Department for transferor companies shall be paid them.

It is also envisaged under the Scheme that all the debts, liabilities, contingent liabilities, duties and obligation of every kind, nature or description of the Transferor Companies shall without any further act or deed be transferred to or be deemed to be transferred to the Transferee Company so as to become, from the appointed date, the debts, labilities, contingent liabilities, duties and obligations of the Transferee Company.

11. Vide order dated 13.10.2022, Bench sought clarification and directed to file an affidavit with respect to the appointed date as mentioned in the Scheme. The petitioner companies filed an affidavit on 14.10.2022, and stated as follows:

i. That as per the scheme the appointed date is 01.04.2019 and considering the time lapse for approval and sanction of the scheme, it has now become incumbent upon the petitioner to change the appointed date from 01.04.2019 to 01.04.2021. The scheme, more

particularly clause 15 pertaining to modification/amendment to the scheme, allows such changes. The relevant clause 15(i) and 15(ii) is reproduced hereunder:

> *15(i) The Transferor Companies and the Transferee Company, through their respective Board of Directors, may give consent to any modifications or amendments to the Scheme or agree to any terms or conditions which the Hon'ble Tribunal and/or other authorities under law may deem fit to impose or which may otherwise be considered necessary or desirable for settling any question or doubt or difficulty that may arise in implementing and/or carrying out the Scheme and do all acts, deeds and things as may be necessary, desirable or expedient for putting the Scheme into effect.*
>
> *15(ii) For the purpose of giving effect to the Scheme or to any modification thereto, the Directors of the Transferee Company are authorised to give such directions and/or to take such steps as may be necessary or desirable including any directions for settling any question or doubt or difficulty whatsoever that may arise.*

ii. The petitioner companies have filed their respective audited financial statements as on 31st March 2022, which is annexed with affidavit filed on 14.10.2022.

12. In pursuant of order dated 22.11.2022, the petitioner companies filed an affidavit on 13.12.2022 with respect to the transferor company No. 1, which is in the business of real estate, that there are no pending real estate projects going on and also no new real estate project is undertaken and, therefore, there is no requirement for issuance of notice to the RERA or obtaining report from the said regulatory authority.

13. As recorded in the daily order dated 16.12.2022, Mr. Suresh Srivastav representative of Official Liquidator Office appeared and stated that Office of official liquidator does not have any objection with respect to the Scheme.

14. It is recorded in the daily order dated 19.12.2022 that the Learned Counsel for Income Tax Department stated that though some Tax demands are pending against the 3rd petitioner company i.e., Ramdev Vyapaar Private Limited and the transferee company, in view of the Undertaking given by the transferee company taking responsibility of paying the dues of all transferor companies to the Income Tax, The Income Tax Department does not have any objection to approval of the Scheme.

15. Mr. B. Rama Ambedkar, Assistant Director, appeared for the Office of Regional Director on 19.12.2022 and stated that they do not have any objection subject to the undertakings given by the petitioner companies.

16. Heard submissions and perused the documents placed on record. Considering the approval accorded by the members and creditors of the Petitioner Companies to the proposed Scheme, and the no objections given by the respective statutory authorities, it appears that the requirements of the provisions of section 230 and 232 are satisfied by the petitioner companies. It seems that the proposed Scheme of Amalgamation is bona fide and in the interest of the shareholders and creditors. Therefore, the petition is allowed and the Scheme annexed

with the petition at annexure-A envisaging amalgamation of M/s. Dayanidhi Real Estate Private Limited, M/s. Gujarat Infoline Private Limited and M/s. Ramdev Vyapaar Private Limited with M/s. Anubha Fabrics Private Limited, is hereby sanctioned. It is declared that the said sanctioned scheme shall be binding on the petitioner companies and their shareholders, creditors and all concerned under the scheme.

17. Notwithstanding the above, if any deficiency is found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the Petitioners.

18. While approving the Scheme as above, we further clarify that this order should not be construed as an order in any manner granting exemption from payment of stamp duty, or taxes including income tax, GST etc., or any other charges or payment in accordance with law, or any kind of waiver in respect of any permission / compliance with any other requirement which may be specifically required under any law.

19. **The Scheme is sanctioned with following directions:**

i. The Scheme of Arrangement as annexed herewith as "Annexure A" is hereby sanctioned and it is declared that the same shall be binding on the Petitioner Companies and their Shareholders and Creditors and all concerned under the Scheme.

ii. The transferor companies No. 1, 2 and 3 shall stand dissolved without winding up.

iii. All the properties mentioned in schedule as "Annexure B", right and powers of the transferor companies No. 1, 2 and 3 specified in the schedule hereto and all the other properties, rights and powers of the transferor companies No. 1, 2 and 3 be transferred without any further act or deed to the transferee Company and accordingly the same shall, pursuant to Section 232 of the Act, vest in the transferee company for all the estate and interest of the transferor companies No. 1, 2 and 3 therein but subject nevertheless to all charges now affecting the same, if any.

iv. Upon the Scheme becoming finally effective, in consideration of the transfer and vesting of the Undertaking of the Transferor companies No. 1, 2 and 3 in the Transferee Company in terms of the Scheme, the Transferee Company shall subject to the provisions of the Scheme and without any further application, act or deed, issue and allot at par the Equity Shares of Rs. 100/- (Rupees One Hundred) each credited as fully paid-up in the Capital of the Transferee Company to the members of the Transferor companies No. 1, 2 and 3 whose names appear in the Register of Members of the respective Transferor companies No. 1, 2 and 3 on a date (Record Date) to be fixed by the Board of Directors of the Transferee Company or to such of their respective heirs, executors, administrators or other legal representatives or other successors in title as may be recognized by the Board of Directors of the Transferee Company and

approved by them to be placed on its register of names in the following proportion:

a. *130 (One Hundred and Thirty) Equity Shares of Rs. 100/- each credited as fully paid-up in the Transferee Company for every 100 (One Hundred) equity shares of Rs. 10/- each fully paid-up held by such member in the capital of the Transferor Company -1.*
b. *135 (One Hundred and Thirty-Five) Equity Shares of Rs. 100/- each credited as fully paid-up in the Transferee Company for every 1000 (One Thousand) equity shares of Rs. 10/- each fully paid-up held by such member in the capital of the Transferor Company -2.*
c. *140 (One Hundred and Forty) Equity Shares of Rs. 10/- each credited as fully paid-up in the Transferee Company for every 1000 (One Thousand) equity shares of Rs. 10/- each fully paid-up held by such member in the capital of the Transferor Company - 3.*

The said new Equity Shares shall rank for voting rights and in all other respects pari-passu with the Equity Shares of the Transferee Company.

v. All proceedings, litigation pending or to be initiated, by or against the transferor companies No. 1, 2 and 3 shall be continued by or against the transferee company.

vi. All workers / employees of all the transferor companies No. 1, 2 and 3 shall be deemed to become the workers /employees of the transferee company with effect from the Appointed Date, and shall stand absorbed in the transferee company in accordance with the Scheme without any interruption of service and on terms and conditions no less favourable than

those on which they are engaged by the transferor companies No. 1, 2 and 3, as on the Effective Date.

vii. The Petitioner companies within thirty days of the date of receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the entire Undertaking of the transferor companies No. 1, 2 and 3 shall stand transferred to the transferee company and the Registrar of Companies shall place all documents relating to the transferor companies No. 1, 2 and 3 to the file kept by them in relation to the transferee company and the files relating to the said three companies shall be treated accordingly.

viii. All concerned Authorities to act on copy of this order along with the Scheme authenticated by the Registrar of this Tribunal who shall issue the certified copy of this order along with the Scheme immediately.

ix. The Petitioner Companies are directed to lodge a copy of this Order and the approved Scheme alongwith Schedule of Assets of the transferor companies No. 1, 2 and 3 attached as Annexure-B with this order, duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, within 60 days from the date of the Order.

x. The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme with the concerned Registrar of Companies, electronically, along with e-form INC-28 in addition to

physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

xi. The legal fees and expenses of the office of the Regional Director are quantified at Rs.10,000/-in respect of the petitioner companies. The said fees to the Regional Director shall be paid by the transferee company.

xii. The legal fees and expenses of the office of the Official Liquidator are quantified at Rs.10,000/- in respect of the petitioner transferor companies. The said fees to the Official Liquidator shall be paid by the transferee company.

xiii. Any person aggrieved by this Scheme shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

xiv. The Petition is allowed and disposed of, in terms of above order.

-Sd-	**-Sd-**
AJAI DAS MEHROTRA	**DR. DEEPTI MUKESH**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**

Abhishek Singh

Annexure 'A'

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COMPOSITE SCHEME OF ARRANGEMENT
IN THE NATURE OF AMALGAMATION OF
DAYANIDHI REAL ESTATE PRIVATE LIMITED
AND
GANESH INFOLINE PRIVATE LIMITED
AND
RAMDEV VYAPAAR PRIVATE LIMITED
WITH
ANUBHA FABRICS PRIVATE LIMITED
UNDER SECTION 230-232
READ WITH SECTION 66 OF THE COMPANIES ACT, 2013

PREAMBLE

All the companies, the transferee company and the Transferor Companies, are under the same management and are closely held companies.

The amalgamation of the Transferor Companies and the transferee company would also improve profitability by improving the efficiency and economic viability of the resultant undertaking as it will have the advantage of larger scale of financial management and more resources will be available for the activities of the new undertaking.

The amalgamation would substantially reduce duplication of several overhead expenses and formalities and will lead to economy in administrative and management costs and improving overall profitability.

The combined managerial and financial resources of the companies would enhance the capability of the resultant unit and to ensure rapid growth and would consolidate the strategic strength of the amalgamated company.

The amalgamation of the companies would broaden the capital base of the resultant unit which can diversify into various other profitable businesses keeping in mind the changed economic and business conditions and opportunities in India.

A larger company would generate more confidence amongst the persons dealing with the Company and will afford access to resources easily and at lower costs.

The amalgamation will be advantageous to the companies, their respective shareholders and all other concerned.

For Anubha Fabrics Pvt. Ltd. Authorised Signatory

For Dayanidhi Real Estate P. Ltd. Director

For Ganesh Infoline P. Ltd. Director/Auth. Sign.

For Ramdev Vyapaar P. Ltd. Director/Auth. Sign.

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1. DEFINITIONS

In this Scheme, unless repugnant to the meaning or context thereof, the following expressions shall have the following meaning:

1.1. **"Act"** means the Companies Act, 1956, Companies Act, 2013 or any statutory modification or re-enactment thereof for the time being in force.

1.2. "Appointed Date" means the 1st day of April, 2019 or such other date as the Hon'ble National Company Law Tribunal may direct.

1.3. **"Effective Date"** means the date on which certified copy of the Order of Hon'ble National Company Law Tribunal vesting the assets, properties, liabilities, rights, duties, obligations and the like of the Transferor Companies in the Transferee Company is filed with the respective Registrar of Companies of State of Gujarat, after obtaining the consents, approvals, permissions, resolutions, agreements, sanctions and orders necessary therefor.

1.4. **"Record Date"** means a day following the Effective Date as fixed by the Board of Directors of Transferee Company or a committee thereof for the purpose of determining the members of the Transferor Companies to whom shares will be allotted pursuant to this Scheme.

1.5. "Scheme" means this Composite Scheme of Arrangement in the nature of Amalgamation in its present form or with any modification(s) approved by the Hon'ble National Company Law Tribunal.

1.6. "Transferee Company" means ANUBHA FABRICS PRIVATE LIMITED (CIN: U17120GJ2011PTC066271) a company incorporated under the Companies Act, 1956 having its Registered Office at Block No. 468, N. H. No. 8, Ta & Post: Palsana, Surat-394315, Gujarat, India.

1.7. "Transferor Company-1" means DAYANIDHI REAL ESTATE PRIVATE LIMITED(CIN: U45400GJ2009PTC099421), a company incorporated under the Companies Act, 1956 having its Registered Office at 134, Super Yarn Market, Zampa Bazar, Surat-395003, Gujarat, India.

1.8. "Transferor Company-2" means GANESH INFOLINE PRIVATE LIMITED(CIN: U51909GJ2008PTC099339), a company incorporated under the Companies Act, 1956 having its Registered Office at 134, Super Yarn Market, Zampa Bazaar, Surat-395003, Gujarat, India.

For Anubha Fabrics Pvt. Ltd. Authorised Signatory

For Dayanidhi Real Estate P.Ltd.

For Ganesh Infoline P. Ltd. Director

For Ramdev Vyapaar P. Ltd.

1.9. **"Transferor Company-3"** means RAMDEV VYAPAAR PRIVATE LIMITED(CIN: U51909GJ2004PTC100782), a company incorporated under the Companies Act, 1956 having its Registered Office at 134, Super Yarn Market, Zampa Bazar, Surat-395003, Gujarat, India.

1.10. **"Undertaking" "Undertaking of the Transferor Companies"** shall mean and include the entire business of the Transferor Companies as a going concern including:

i) All the assets and property of the Transferor Companies as on the Appointed Date (hereinafter referred to 'the said Assets').

ii) All secured and unsecured debts, liabilities, duties and obligations of the Transferor Companies as on the Appointed Date (hereinafter referred to 'the said Liabilities').

iii) Without prejudice to the generality of Sub-clause (i) and (ii) above, the undertaking of the Transferor Companiesshall include entire business as a going concern including all the assets and properties of the Transferor Companies, whether moveable, immoveable, tangible, intangible, present, contingent, corporeal or incorporeal and investments, loans, advances, deposits & claims; lease hold, tenancy, occupancy or easement rights; industrial & other licenses, permissions, authorizations, approvals, quota rights, permits, trademarks, brands, designs, drawings, patents, other intellectual property rights, import or export entitlements/ benefits and all other entitlements, benefits, advantages or rights of every kind whatsoever; rights and benefits of all the agreements & contracts; rights and entitlements of any amount or benefits claimable from any Government (whether or not recorded in the books of accounts); right to claim the refund or credit of any taxes, duties, cess or other statutory charges including right of refund, right of any tax credit or adjustment of any excess or erroneous payments and interest thereon under any law, statute, Rule or scheme of any Government; right to deductions, exemptions, incentive, rebates, allowances, set off of brought forward unabsorbed losses, tax/duty credits including MAT credit u/s 115JAA of Income Tax Act, 1961, amortization benefits and all other benefits under the Income Tax Act, 1961 or under any other law, statute, Rule or Policy of the Central Government, State Government, any other Government, local body or any authority; telex, facsimile and other communication facilities and equipments; Electrical, Power, Gas, Water or other energy/utility connections along with equipments connected therewith and all other interests, rights, benefits, powers, advantages, allotments, registrations or entitlements of any kind, nature or description, whatsoever, owned by, belonging to, vested in,

For Anubha Fabrics Pvt. Ltd. Authorised Signatory

For Davanidhi Real Estate P. Ltd.

For Ganesh Infoline Ltd. Director/Auth. Sign.

For Ramdev Vyapaar P. Ltd. Director/Auth. Sign.

granted in favour of or enjoyed by or in the control of the Transferor Companies including all the reserves, surplus, provisions and funds of the Transferor Companies and all the liabilities, debts, obligations, commitments and duties of the Transferor Companies, whether present or contingent and whether ascertained or yet to be ascertained and whether arising out of any contractual or statutory obligation.

2. SHARE CAPITAL

(a) *The Share Capital of the Transferor Company-1 as on Appointed date.*

AUTHORISED	**(IN RUPEES)**
5,00,000 Equity Shares of Rs. 10/- each	50,00,000/-
TOTAL	50,00,000/-

ISSUED, SUBSCRIBED AND PAID UP	**(IN RUPEES)**
4,26,500 Equity shares of Rs. 10/- each	42,65,000/-
TOTAL	42,65,000/-

There has been no change in the capital structure of Transferor Company-1 subsequent to above date till the date of approving of the Scheme by the Board of Directors.

(b) *The Share Capital of the Transferor Company-2 as on Appointed date.*

AUTHORISED	**(IN RUPEES)**
50,000 Equity Shares of Rs. 10/- each	5,00,000/-
TOTAL	5,00,000/-

ISSUED, SUBSCRIBED AND PAID UP	**(IN RUPEES)**
50,000 Equity shares of Rs. 10/- each	5,00,000/-
TOTAL	5,00,000/-

There has been no change in the capital structure of Transferor Company-2 subsequent to above date till the date of approving of the Scheme by the Board of Directors.

(c) *The Share Capital of the Transferor Company-3 as on Appointed date.*

AUTHORISED	**(IN RUPEES)**
20,000 Equity Shares of Rs. 10/- each	2,00,000/-
TOTAL	2,00,000/-

ISSUED, SUBSCRIBED AND PAID UP	**(IN RUPEES)**
20,000 Equity shares of Rs. 10/- each	2,00,000/-
TOTAL	2,00,000/-

For Ganesh Infoline P. Ltd. Director/Auth. Sign.

For Ganesh Infoline P. Ltd. Director/Auth. Sign.

For Davenidhi Real Estate P. Ltd.

For Anubha Fabrics Pvt. Ltd. Authorised Signatory

There has been no change in the capital structure of Transferor Company-3 subsequent to above date till the date of approving of the Scheme by the Board of Directors.

(d) The Share Capital of the Transferee Company as on appointed date.

AUTHORISED	(IN RUPEES)
8,50,000 Equity Shares of Rs. 100/- each	8,50,00,000/-
TOTAL	8,50,00,000/-

ISSUED, SUBSCRIBED AND PAID UP	(IN RUPEES)
8,50,000 Equity Shares of Rs. 100/- each	8,50,00,000/-
TOTAL	8,50,00,000/-

There has been no change in the capital structure of Transferee Company subsequent to above date till the date of approving of the Scheme by the Board of Directors.

3. TRANSFER AND VESTING

a) Upon the coming into effect of this Scheme and with effect from the Appointed Date and subject to the provisions of this Scheme, the Undertaking of the Transferor Companies shall, pursuant to Section 232 of the Companies Act, 2013, and without any further act or deed, be transferred to and vested in or be deemed to have been transferred to and vested in the Transferee Company as a going concern so as to become as and from the Appointed Date, the undertaking with all estates, assets, properties, rights, title and interest of the Transferee Company.

b) Any statutory licenses, permissions, approvals or consents to carry on the operations of the Transferor Companies shall stand vested in or transferred to the Transferee Company without any further act or deed and shall be appropriately mutated by the Statutory Authorities concerned in favour of the Transferee Company upon the vesting and transfer of the Undertaking pursuant to this Scheme. The benefit of all statutory and regulatory permissions, factory licenses, environmental approvals and consents, other licenses and consents shall vest in and become available to the Transferee Company pursuant to this Scheme. In so far as the various incentives, subsidies, rehabilitation Schemes, special status and other benefits or privileges enjoyed, granted by any Government body, local authority or by any other persons, or availed of by the Transferor Companies are concerned, the

For Anubha Fabrics Pvt. Ltd. Authorised Signatory

For Dayanidhi Real Estate P. Ltd. Director

For Ganesh Infoline P. Ltd. Director

For Randeep Vyapaar P. Ltd. Director/Auth. Sign.

same shall vest with and be available to the Transferee Company on the same terms and conditions.

c) With effect from the Appointed Date, all debts, liabilities, contingent liabilities, duties and obligations of every kind, nature and description of the Transferor Companiesshall also, pursuant to Section 232 of the Companies Act, 2013 without any further act or deed, be transferred to or be deemed to be transferred to the Transferee Company so as to become as from the Appointed Date the debts, liabilities, contingent liabilities, duties and obligations of the Transferee Company and it shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement by virtue of which such debts, liabilities, contingent liabilities, duties and obligations have arisen, in order to give effect to the provisions of this Sub-Clause.

d) With effect from the Appointed date, all Direct Taxes paid, Direct Taxes Refund Due or Receivable, Tax Credit u/s 115JAA of the Income Tax Act, 1961, Carried forward losses, depreciation, capital losses, pending balances of amortizations etc., under Income Tax and including those defined under Section 72 to 79 of the Income Tax Act in respect of any assessment and/or appeal, (whether as per Books or as per Income Tax) and any rights/refunds under Income Tax Act, Wealth Tax Act, including application for rectification, appeals filed with tax authorities of the Transferor Companiesshall also, pursuant to provisions of the Act, without any further act or deed, be transferred to or be deemed to be transferred to the Transferee Company, so as to become as from the Appointed Date the Direct Taxes paid; Direct Taxes Refund Due or Receivable, (whether as per Books or as per Income Tax), Tax Credit or entitlements of the Transferee Company and it shall not be necessary to obtain the consent of any third party or other person, in order to give effect to the provision of this Sub-Clause.

e) The transfer and vesting of the assets and investments of the Transferor Companiesas aforesaid, shall be subject to the existing securities, charges etc., if any subsisting, over or in respect of the property and assets or any part thereof of the Transferor Companies.

Provided, however, that any reference in any security documents or arrangements (to which the Transferor Companiesis a party) to the assets of the Transferor Companiesoffered or agreed to be offered as security for any financial assistance or obligations, shall be construed as reference only to the assets pertaining to the undertaking of the Transferor Companiesas are vested in the Transferee Company by virtue of the aforesaid Clauses.

For Anubha Fabrics Pvt. Ltd.
Authorised Signatory

For Ganesh Infoline P. Ltd.
Director / Auth. Sign.

For Dayanidhi Real Estate P. Ltd.

For Ramdev Vyapaar P. Ltd.

Director

intent that such security, charge and mortgage shall not extend or be deemed to extend, to any of the other assets of the Transferor Companiesor any of the assets of the Transferee Company.

Provided further that the securities, charges etc, (if any subsisting) over and in respect of the assets or any part thereof of the Transferee Company shall continue with respect to such assets or part thereof and this Scheme shall not operate to enlarge such securities, charges or mortgages to the end and intent that such securities, charges and mortgages shall extend or be deemed to extend to the assets of the Transferor Companiesvested in the Transferee Company.

4. CONTRACT, DEEDS, BONDS AND OTHER INSTRUMENTS:

a) Upon the coming into effect of this Scheme and subject to the other provisions contained in the Scheme, all contracts, deeds, bonds, agreements, Schemes, arrangements and other instruments of whatsoever nature to which the Transferor Companiesis a party or to the benefit of which the Transferor Companiesis or may be eligible, and which are subsisting or having effect immediately before the Effective Date, shall remain in full force and effect against or in favour, as the case may be, of the Transferee Company, and may be enforced as fully and effectually as if, instead of the Transferor Companies, the Transferee Company had been a party or beneficiary or obligee thereto.

b) All deposits including pubic deposits, debentures or bonds and any amount remaining unpaid/unclaimed relating thereto of the Transferor Companies, if any, shall be kept distinctly identified in the records of the Transferee Company for all intents and purposes including taxation and accounting and shall not be combined with any existing outstanding deposit scheme or series of debentures or bonds of the Transferee Company.

c) The Transferee Company may, at any time after the coming into effect of this Scheme in accordance with the provisions hereof, if so required, under any law or otherwise, execute deeds, confirmations or other writings or tripartite arrangements with any party to any contract or arrangement to which the Transferor Companiesis a party or any writings as may be necessary to be executed in order to give formal effect to the above provisions.

For Ganesh Infrabuild P. Ltd. Director/Auth. Sign.

For Anubha Fabrics Pvt. Ltd. Authorised Signatory

For Dayanidhi Real Estate P. Ltd. Director

For Ganesh Infrabuild P. Ltd. Director/Auth. Sign.

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5. LEGAL PROCEEDINGS:

a. Upon the coming into effect of the Scheme, all suits, actions and proceedings by or against the Transferor Companiespending and/or arising on or before the Effective Date shall be continued and be enforced by or against the Transferee Company as effectually as if the same had been pending and/or arising by or against the Transferee Company.

b. The Transferee Company undertakes to have all legal or other proceedings initiated by or against the Transferor Companiesreferred to in sub-clause (a) above transferred into its name and to have the same continued, prosecuted and enforced by or against the Transferee Company.

6. CONDUCT OF BUSINESS BY TRANSFEROR COMPANIESTILL EFFECTIVE DATE:

With effect from the Appointed Date and up to the Effective Date:

(a) The Transferor Companiesshall carry on and be deemed to carry on all its businesses and activities and stand possessed of its properties and assets for and on account of and in trust for the Transferee Company.

(b) All the profits accruing to the Transferor Companiesor losses arising or incurred (including the effect of taxes, if any, thereon) by it shall, for all purposes, be treated as the profits or losses of the Transferee Company as the case may be.

(c) The Transferor Companieshereby undertakes to carry on its business until the Effective Date with reasonable diligence and shall not, without the written consent of the Transferee Company, alienate, charge or encumber or otherwise deal with the assets or any part thereof except in the ordinary course of its business.

(d) The Transferor Companiesshall not undertake any additional financial commitments of any nature whatsoever, borrow any amounts or incur any other liabilities or expenditure without the written consent of the Transferee Company, except in the ordinary course of business.

(e) The Transferor Companiesshall not, without the written consent of the Transferee Company, undertake any new business.

For Anubha Fabrics Pvt. Ltd. Authorised Signatory

For Dayanidhi Real Estate P. Ltd. Director

For Ganesh Infoline P. Ltd. Director/Auth. Sign.

For Ramdev Vyapaar P. Ltd. Director/Auth. Sign

(f) Save as specifically provided in this Scheme, neither the Transferor Companiesnor the Transferee Company shall make any change in their capital structure by way of increase (whether by a rights issue, issue of equity or preference shares, bonus shares, convertible debentures or otherwise), decrease, reduction, reclassification, sub-division or consolidation, reorganisation or in any manner which may in any manner affect the Share Exchange Ratio prescribed in Clause 9 except by mutual consent of the Board of Directors of both the companies.

(g) The Transferor Companiesshall not vary the terms and conditions of the service of its staff, workmen and employees except in the ordinary course of business.

7. OPERATIVE DATE OF THE SCHEME:

The Scheme, although operative from the Appointed Date, shall become effective from the Effective Date.

8. TRANSFEROR COMPANIES'S STAFF, WORKMEN AND EMPLOYEES:

a) All employees of the Transferor Companiesin service on the Effective Date shall become employees of the Transferee Company on such date without any break or interruption in service and on terms and conditions as to remuneration not less favorable than those subsisting with reference to the Transferor Companies as on the said date.

b) It is provided that so far as the Gratuity Fund, created or existing for the benefit of the employees of the Transferor Companiesis concerned, upon the coming into effect of this Scheme, the Transferee Company shall stand substituted for the Transferor Companies for all purposes whatsoever related to the administration or operation of the Fund or in relation to the obligation to make contributions to the said Fund in accordance with provisions of such Fund as per the terms provided in the Trust Deed, to the end and intent that all the rights, duties, powers and obligations of the Transferor Companiesin relation to such Fund shall become those of the Transferee Company. It is clarified that the services of the employees of the Transferor Companieswill be treated as having been continuous for the purpose of the aforesaid Fund.

For Anubha Textiles Pvt. Ltd.
Authorised Signatory

For Dayanidhi Real Estate P. Ltd.
Director

For Ganesh Infotech P. Ltd.
For Ramkrishna Vyapaar P. Ltd.
Director / Auth. Sign.

c) It is provided that so far as the Provident Fund or any other Special Scheme(s)/Fund(s) (except Gratuity Fund), if any, created or existing for the benefit of the employees of the Transferor Companiesis concerned, upon the coming into effect of this Scheme, the same shall merge into such Scheme(s)/ Fund(s) maintained/ administered/ operated by the Transferee Company for the benefit of the employees of the merged company to the end and intent that all the rights, duties, powers and obligations of the Transferor Companiesin relation to such Schemes/Funds shall become those of the Transferee Company. It is clarified that the services of the employees of the Transferor Companies will be treated as having been continuous for the purpose of the aforesaid Schemes/Funds. On such merger the erstwhile Fund for the benefit of the employees of the Transferor Companiesshall, subject to fulfillment of proccdural requirement, if any, shall stand dissolved.

9.ISSUE OF SHARES BY THE TRANSFEREE COMPANY

a) Upon the Scheme becoming finally effective, in consideration of the transfer and vesting of the Undertaking of the Transferor Companiesin the Transferee Company in terms of the Scheme, the Transferee Company shall subject to the provisions of the Scheme and without any further application, act or deed, issue and allot at par the Equity Shares of Rs.100/- (Rupees One Hundred) each credited as fully paid-up in the Capital of the Transferee Company to the members of the Transferor Companieswhose names appear in the Register of Members of the respective Transferor Companieson a date (Record Date) to be fixed by the Board of Directors of the Transferee Company or to such of their respective heirs, executors, administrators or other legal representatives or other successors in title as may be recognized by the Board of Directors of the Transferee Company and approved by them to be placed on its register of names in the following proportion :

a) 130 (One Hundred and Thirty) Equity Share of Rs. 100/- each credited as fully paid-up in the Transferee Company for every 100 (One Hundred) equity share of Rs. 10/- each fully paid-up held by such member in the capital of the Transferor Company -1.

b) 135 (One Hundred and Thirty Five) Equity Shares of Rs. 100/- each credited as fully paid-up in the Transferee Company for every 1000 (One Thousand) equity share of Rs. 10/- each fully paid-up held by such member in the capital of the Transferor Company -2.

For Anubha Fabrics Pvt. Ltd.
Authorised Signatory

For Dayanidhi Real Estate P. Ltd.
Director

For Ganesh Infoline P. Ltd.
Director/Auth. Sign.

For Ramdev Vyapaar P. Ltd.
Director/Auth. Sign.

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c) 140 (One Hundred and Forty) Equity Share of Rs. 10/- each credited as fully paid-up in the Transferee Company for every 1000(One Thousand) equity share of Rs. 10/- each fully paid-up held by such member in the capital of the Transferor Company - 3.

The said new Equity Shares shall rank for voting rights and in all other respects pari-passu with the Equity Shares of the Transferee Company.

b) The Share Certificates in relation to the shares held by the Equity Shareholders of the Transferor Companieswhose names are recorded in the Register of Members of the Transferor Companieson the Record Date, fixed by the Board of Directors of the Transferee Company, shall be deemed to have been automatically cancelled and be of no effect on and from such Record Date, without any further act, instrument or deed.

c) In so far as the Equity sharesof the Transferor Companiesif any, held by the Transferee Company, on the Effective Date are concerned, such shares would be cancelled and to that extent the Transferee Company is required to issue less number of shares.

d) In so far as the Equity shares of the Transferee Company held by the Transferor Companiesis concerned, such shares would be cancelled on the effective date and hence there will be reduction of share capital upon the scheme is sanctioned. It is hereby clarified that approval of member to the scheme shall be deemed to consent of shareholder under Section 66 of the Companies Act, 2013 and no special resolution shall be required to be passed by Transferee Company separately in General Meeting. It is further clarified that under the accepted principle of Single Window Clearance, the sanction of scheme by Hon'ble National Company Law Tribunal shall include and be deemed to be sanction of reduction of capital of Transferee Company u/s 66 of the Companies Act, 2013.

e) In case the members of the Transferor Companies owns shares in the Transferor Companies such that they become entitled to a fraction of an equity share of the Transferee Company, the Transferee Company shall not issue fractional shares to such member but shall instead, consolidate such fractions and Board of Directors of Transferee Company shall sell such shares at Fair Value as determined by Registered Valuer in recommendation of Swap Ratio and distribute the net sale proceeds (after deduction of applicable taxes and other expenses incurred) to the members respectively entitled to the same in proportion to their fractional entitlements.

For Anubha Fabrics Pvt. Ltd.

Authorised Signatory

For Dayanidhi Real Estate P. Ltd.

Director

For Garnet Infoline P. Ltd.

Director/Auth. Sign.

For Ramdev Vyapaar P. Ltd.

Director/Auth. Sign.

f) Upon the Scheme becoming effective, the issued, subscribed and paid-up share capital of the Transferee Company shall stand suitably increased consequent upon the issuance of New Equity Shares. It is clarified that no special resolution under Section 62(1)(C) of the Act shall be required to be passed by the Transferee Company separately in general meeting for issue of New Equity Shares.

g) The New Equity Shares to be issued in terms hereof shall be subject to the provisions of Memorandum and Articles of Association of the Transferee Company and shall rank pari-passu inter-se in all respects including dividends declared, voting and other rights. The issue and allotment of New Equity Shares shall be deemed to have been carried out as if the procedure laid down under Section 62(1)(C) of the Act and any other applicable provisions of the Act have been complied with.

h) In the event of there being any pending share transfers, whether lodged or outstanding, of any member of the Transferor Companies, the Board of Directors of the Transferee Company shall be empowered in appropriate cases, prior to or even subsequent to the Record date, to effectuate such a transfer as if such changes in registered holder were operative as on the Record Date, in order to remove any difficulties arising to the transferor / transferee of the shares in the Transferor Companies and in relation to the shares issued by the Transferee Company after the effectiveness of this Scheme. The Board of Directors of the Transferee Company shall be empowered to remove such difficulties as may arise in the course of implementation of this Scheme and registration of new shareholders in the Transferee Company.

i) The share of the Transferor and the Transferee Company is not listed on any stock exchange. The Equity Shares of the Transferee Company issued in terms of the Clause 9(a) above shall be issued in physical form and shall not be admitted to be listed and/or admitted to trading on any Stock exchange/s, whether in India or abroad.

10. ACCOUNTING TREATMENT IN THE BOOKS OF TRANSFEREE COMPANY

On the Scheme becoming effective and with effect from the Appointed Date, Transferee Company shall account for the amalgamation in its books as under:

For Anubha Fabrics Pvt. Ltd.
Authorised Signatory

For Dayanidhi Real Estate P. Ltd.
Director

For Ganesh Infoline Ltd.
Devika Gupta
Director/Auth. Sign.

For Ramkrishna Vyapaar P. Ltd.
Director/Auth. Sign.

10.1 As the amalgamation under this Scheme is the 'amalgamation in the nature of merger' as defined in Para 3 (e) and 29 of the Accounting Standard – 14 (AS-14) on "Accounting for Amalgamations" prescribed by Central Government u/s 133 of the Companies Act, 2013, the accounting treatment of the assets, liabilities, reserves, balance in the P & L A/c of the Transferor Companiesand the difference between the face value of the share capital issued to the members of the Transferor Companiesas per clause '9' of the Scheme and the paid up Share Capital of the Transferor Companiesshall, subject to the provisions of this Scheme, be recorded in the books of accounts of the Transferee Company as per and in accordance with the 'Pooling of Interest Method' as described in AS-14.

10.2 Transferee Company shall credit the aggregate face value of the Equity Shares issued and allotted under clause 9 to the Equity Share Capital account.

10.3 The inter-company balances and investments, if any, appearing in the books of accounts of Transferee Company and Transferor Companies; if any, will stand cancelled.

10.4 The difference (excess or deficit), between the net value of assets over aggregate of face value for the Equity shares issued by Transferee Company to the shareholders of Transferor Companiespursuant to this Scheme and after giving effect to clause 10.3 be adjusted to Capital Reserve or Goodwill including intangible assets, as the case may be in books of Transferee Company.

10.5 Goodwill (including intangibles), if any, arising due to amalgamation as per clause 10.4 above shall be amortized over its useful life as decided by Board of Directors under AS 14 on Amalgamation Accounting. It is also clarified that amortization of goodwill will continue to be made even under Indian Accounting standards (Ind AS) if it is applicable to Transferee Company.

10.6 If considered appropriate for the purpose of application of uniform accounting methods and policies between Transferor Companiesand Transferee Company, Transferee Company may make suitable adjustments and reflect the effect thereof in the Capital Reserve/ Goodwill of Transferee Company as the case may be.

11. AMENDMENT TO MEMORANDUM AND ARTICLES OF ASSOCIATION OF THE TRANSFEREE COMPANY.

(a) Upon coming into effect of the Scheme, the Authorized Share Capital of the Transferor Companies, as mentioned in Clause 5(a) to (e) above, or such

For Ganesh Housing Co. Ltd.
Director / Auth. Sign.

For Anubha Fabrics Pvt. Ltd.
Authorised Signatory

For Dayanidh Real Estate P. Ltd.
Director

For Ganesh Housing Co. Ltd.
Director / Auth. Sign.

amount as may be on the effective date, shall be added to the Authorized Share Capital of the Transferee Company, as on the effective date, without any further act or deed and without any further payment of the stamp duty or the registration fees and Clause V of the Memorandum of Association of the Transferee Company shall be replaced accordingly.

(b) It is further clarified that the Transferee Company shall not be required to file any form, document or intimation concerning the increase in its authorized share capital or for that purpose make payment of any fee to the Office of the Registrar of Companies, Gujarat or payment of any stamp duty to the State of Gujarat and the authorized share capital of the Transferee Company shall, without any further act or deed or payment of fee or duty shall be increased automatically.

(c) The filing/registration fee and stamp duty already paid by the Transferor Companies on its authorized share capital, which is being combined with the authorized share capital of the Transferee Company in terms of the preceding sub-clause 11 (B), shall be deemed to have been paid by the Transferee Company and accordingly, the Transferee Company shall not be required to pay any filing / registration fee / stamp duty on the authorized share capital so increased.

(d) Upon the Scheme being effective, the Transferee Company shall be entitled to commence and carry on the business and activities currently being carried on by the Transferor Companies, without any further act or deed with effect from the appointed date. Under the accepted principle of Single Window Clearance, It is hereby clarified that for the purposes of Clause 11 the consent of the shareholders of the Transferee Company to the Scheme shall be deemed to be sufficient for the purposes of effecting this amendment and no further resolution under Section 13, Section 14, Section 61 or any other applicable provisions of the Act would be required to be separately passed.

12. DECLARATION OF DIVIDEND

a. The Transferor Companiesand the Transferee Company shall be entitled to declare and pay dividend, whether interim or final, to their respective shareholders in respect of the accounting period prior to the Effective Date, provided that the Transferor Companiesshall not make any such declaration,

For Anubha Fabrics Pvt. Ltd. For Dayanidhi Real Estate P. Ltd. For Ganesh Infoline P. Ltd. For Ramdev Dyeing & Printing Mills P. Ltd.

Authorised Signatory Director Director Director/Auth. Sign.

except with the prior approval of the Board of Directors of the Transferee Company.

b. It is clarified that the aforesaid provision in respect of declaration of dividends, whether interim or final, is an enabling provision only and shall not be deemed to confer any right on any member of any of the Transferor Companiesand/or the Transferee Company to demand or claim any dividends which, subject to the provisions of the Act, shall be entirely at the discretion of the respective Boards of Directors of the Transferor Companiesand the Transferee Company and subject, wherever necessary, to the approval of the shareholders of the Transferor Companies and the Transferee Company respectively.

13. DISSOLUTION OF TRANSFEROR COMPANIES:

On the Scheme becoming effective, the Transferor Companiesshall stand dissolved without being wound up.

14. APPLICATIONS TO HON'BLE NATIONAL COMPANY LAW TRIBUNAL

The Transferor Companiesand the Transferee Company shall with all reasonable dispatch make applications and petitions under Section230and232 and other applicable provisions of the Act to the Hon'ble National Company Law Tribunal for sanctioning this Scheme and for dissolution of the Transferor Companieswithout winding up.

15. MODIFICATION / AMENDMENT TO THE SCHEME

i. The Transferor Companiesand the Transferee Company, through their respective Board of Directors, may give consent to any modifications or amendments to the Scheme or agree to any terms or conditions which the Hon'ble Tribunal and/or other authorities under law may deem fit to impose or which may otherwise be considered necessary or desirable for settling any question or doubt or difficulty that may arise in implementing and/or carrying out the Scheme and do all acts, deeds and things as may be necessary, desirable or expedient for putting the Scheme into effect.

ii. For the purpose of giving effect to the Scheme or to any modification thereof, the Directors of the Transferee Company are authorised to give such directions and/or to take such steps as may be necessary or desirable including any directions for settling any question or doubt or difficulty whatsoever that may arise.

For Anubha Fabrics Pvt. Ltd.
Authorised Signatory

For Dayanidhi Real Estate P. Ltd.
Director

For Ganesh Infomedia P. Ltd.
Director / Auth. Sign.

For Ramdev Agrawal Pvt. Ltd.
Director / Auth. Sign.

16. SCHEME CONDITIONAL ON APPROVAL / SANCTIONS

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The Scheme is conditional on and subject to:

(a) the approval to the Scheme by the requisite majorities of the shareholders and creditors, if any, of the Transferor Companiesand the shareholders of the Transferee Company.

(b) the sanction of the National Company Law Tribunal, under Section230to232 of the Act, in favour of the Transferor Companiesand the Transferee Company and to the necessary Orders under Section 230 to 232 of the Act, being obtained.

(c) filing of the order obtained from the National Company Law Tribunal, under Section 230to232 of the Companies Act, 2013 with the Registrar of Companies, Gujarat State.

(d) any other sanction or approval of any concerned authorities, as may be considered necessary and appropriate by the respective Board of Directors of the Transferor Companiesand the Transferee Company, being obtained and granted in respect of any of the matters for which such sanction or approval is required.

17. EXPENSES CONNECTED WITH THE SCHEME AND INCIDENTAL TO THE COMPLETION OF THE AMALGAMATION

All costs, charges and expenses of the Transferor Companiesand the Transferee Company respectively in relation to or in connection with the Scheme and for carrying out and implementing/completing the terms and provisions of the Scheme and/or incidental to the completion of Amalgamation of the Transferor Companieswith the Transferee Company in pursuance of this Scheme shall be borne and paid by the Transferee Company.

For Anubha Fabrics Pvt. Ltd.

Authorised Signatory

For Dayanidhi Real Estate Ltd.

Director

For Ganesh Infoline P. Ltd.

Director/Auth. Sign.

For Ramdev Vyapaar P. Ltd.

Director/Auth. Sign.

Annexure 'B'

DAYANIDHI REAL ESTATE PRIVATE LIMITED

CIN: U17100GJ2009PTC099421
Regd. Office: 134, Super Yarn Market, Zampa Bazar,
Surat -395003, Gujarat, India
Telephone No.: +91-9898010711
E-mail Id.: vsinghal@anubhapolyweaves.com

DAYANIDHI REAL ESTATE PRIVATE LIMITED, HAVING ITS REGISTERED OFFICE AT 134, SUPER YARN MARKET, ZAMPA BAZAR, SURAT-395003, GUJARAT, INDIA.

Description and List of properties and assets transferred from *Dayanidhi Real Estate Private Limited* to *Anubha Fabrics Private Limited*, pursuant to the order and judgment, sanctioning the scheme of amalgamation by the Hon'ble National Company Law Tribunal (NCLT), Ahmedabad by common order passed in Company Petition No. CP(CAA)/15(AHM)2022.

I. DESCRIPTION OF FREEHOLD PROPERTIES: NIL

II. DESCRIPTION OF LEASEHOLD PROPERTIES: NIL

III.INVESTMENTS:

(i) UNQUOTED INVESTMENTS: 417000 equity shares of face value of Rs.100/- each in Anubha Fabrics Private Limited.

For DAYANIDHI REAL ESTATE PRIVATE LIMITED

Director

Date: 15-12-2022
Place: Surat

GANESH INFOLINE PRIVATE LIMITED

CIN: U17100GJ2008PTC099339
Regd Office: 134, Super Yarn Market, Zampa Bazar,
Surat -395003, Gujarat, India
E-mail Id.: snayak@anubhapolyweaves.com
Telephone No.: +91-9824111406

GANESH INFOLINE PRIVATE LIMITED, HAVING ITS REGISTERED OFFICE AT 134, SUPER YARN MARKET, ZAMPA BAZAR, SURAT-395003, GUJARAT, INDIA.

Description and List of properties and assets transferred from *Ganesh Infoline Private Limited* to *Anubha Fabrics Private Limited*, pursuant to the order and judgment, sanctioning the scheme of amalgamation by the Hon'ble National Company Law Tribunal (NCLT), Ahmedabad by common order passed in Company Petition No. CP(CAA)/15(AHM)2022.

I. DESCRIPTION OF FREEHOLD PROPERTIES: NIL

II. DESCRIPTION OF LEASEHOLD PROPERTIES: NIL

III.INVESTMENTS:

(i) UNQUOTED INVESTMENTS: 335000 equity shares of face value of Rs.10/- each in Dayanidhi Real Estate Private Limited.

For GANESH INFOLINE PRIVATE LIMITED

Reena Bansal

Director

Date: 15-12-2022
Place: Surat

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

RAMDEV VYAPAAR PRIVATE LIMITED

CIN No.: U17100GJ2004PTC100782
Regd. Office: 134, Super Yarn Market, Zampa Bazar,
Surat -395003, Gujarat, India
Email Id: hmehta@anubhapolyweaves.com
Telephone No.: +91-9824111406

RAMDEV VYAPAAR PRIVATE LIMITED, HAVING ITS REGISTERED OFFICE AT 134, SUPER YARN MARKET, ZAMPA BAZAR, SURAT-395003, GUJARAT, INDIA.

Description and List of properties and assets transferred from *Ramdev Vyapaar Private Limited* to *Anubha Fabrics Private Limited*, pursuant to the order and judgment, sanctioning the scheme of amalgamation by the Hon'ble National Company Law Tribunal (NCLT), Ahmedabad by common order passed in Company Petition No. CP(CAA)/15(AHM)2022.

I. DESCRIPTION OF FREEHOLD PROPERTIES: NIL

II. DESCRIPTION OF LEASEHOLD PROPERTIES: NIL

III.INVESTMENTS:

(i) UNQUOTED INVESTMENTS: 81500 equity shares of face value of Rs.10/- each in Dayanidhi Real Estate Private Limited.

For RAMDEV VYAPAAR PRIVATE LIMITED

Director

Date: 15-12-2022
Place: Surat